

VCU313509 Asman, Bruce E. et al vs. Ponce, Cipriano et al

County: tulare

Division: Civil Law and Motion

Department: 1

Hearing date: 2026-09-10

Motion: (1) Plaintiffs' Continued Motion to Consolidate; (2) Plaintiffs' Continued Motion for Leave to File Amended Complaint

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Re: Asman, Bruce E. et al vs. Ponce, Cipriano et al

Case No.: VCU313509

Date: September 10, 2026

Time: 8:30 A.M.

Dept. 1-The Honorable David C. Mathias

Motion: (1) Plaintiffs' Continued Motion to Consolidate; (2) Plaintiffs' Continued Motion for Leave to File Amended Complaint

Tentative Ruling:

(1) To continue the motion to September 24, 2026; 8:30 am; D1 and order the notice of related case filed in VCU332655, the notice of this motion filed in VCU332655 and the proposed order filed in both VCU313509 and VCU332655;

(2) To grant the motion and deem the proposed amended complaint filed as of the date of this hearing

(1) Plaintiffs' Continued Motion to Consolidate

Facts and Analysis

Via this continued motion, Plaintiffs seek to consolidate this matter VCU313509 with VCU332655.

VCU313509, as it stands, involves causes of action for quiet title and easements involving 13930 Idaho Ave Orosi, CA 93647 ("Subject Property"). The Court notes a pending motion to amend the complaint to add causes of action for negligence, fraud and failure to disclose involving the Subject Property. Defendants Cipriano Ponce and Sylvia Ponce are alleged to claim that the garage in dispute belongs to another parcel owned by Defendants.

VCU332655 involves causes of action for negligence and misrepresentation against Defendants Bloom Group, Inc. and Alma Rosa Jimenez (alleged to have represented Plaintiffs regarding the purchase of the Subject Property) and Defendants Melson Realty, Inc. and Maxim Leo Lisitsyn (alleged to have represented the sellers of the Subject Property.)

Pursuant to California Code of Civil Procedure section 1048, subd. (a), “[w]hen actions involving a common question of law or fact are pending before the court...it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.”

“A consolidation of actions does not affect the rights of the parties. The purpose of consolidation is merely to promote trial convenience and economy by avoiding duplication of procedure, particularly in the proof of issues common to both actions.” (Wouldridge v. Burns (1968) 265 Cal.App.2d 82, 86.) “Under the statute and the case law, there are thus two types of consolidation: a consolidation for purposes of trial only, where the two actions remain otherwise separate; and a complete consolidation or consolidation for all purposes, where the two actions are merged into a single proceeding under one case number and result in only one verdict or set of findings and one judgment.” (Hamilton v. Asbestos Corp., Ltd. (2000) 22 Cal.4th 1127, 1147.) “Consolidation under Code of Civil Procedure section 1048 is permissive, and it is for the trial court to determine whether the consolidation is for all purposes or for trial only.” (Id. at 1149.) Consolidation “is a matter committed to the sound discretion of the trial [court].” Fellner v. Steinbaum (1955) 132 Cal.App.2d 509, 511.)

Here, the substantive elements of section 1048(a) appear to be met given the common issues between the matters.

However, the Court will require compliance with the procedural aspects of consolidation prior to ordering consolidation.

Under California Rule of Court 3.300, a notice of related case must be filed in both VCU313509 and VCU332655. This requirement has been satisfied as to VCU313509. No notice of related case appears filed in VCU332655

Under California Rules of Court Rule 3.350(a), the notice of motion to consolidate must be filed in each case sought to be designated.

While the notice was filed in VCU313509, no notice of this motion was filed in VCU332655. The Court orders Plaintiffs to file the notice of motion in VCU332655.

Finally, California Rule of Court, Rule 3.350(c) requires a proposed order to be filed in each case sought to be consolidated. No proposed order has been filed in either VCU313509 or VCU332655. The Court orders Plaintiffs to a proposed order in both VCU313509 and VCU332655.

Upon compliance with the procedural requirements, the Court intends to grant consolidation of these matters for all purposes.

The Court, therefore, continues this matter to September 24 2026; 8:30 am; D1 and orders Plaintiffs to file:

the notice of related case in VCU332655;

the notice of this motion in VCU332655; and

the proposed order in both VCU313509 and VCU332655.

(2) Plaintiffs' Continued Motion for Leave to File Amended Complaint

Facts

On July 2, 2026, Plaintiffs filed this motion for leave to file a first amended complaint.

Plaintiffs stated "THE PROPOSED AMENDMENTS ARISE FROM THE SAME REAL PROPERTY TRANSACTION, INVOLVE THE SAME PARTIES, AND CONCERN THE SAME UNDERLYING DISPUTE THAT HAS BEEN BEFORE THE COURT SINCE THIS ACTION WAS FILED. PLAINTIFF DOES NOT SEEK TO INTRODUCE AN UNRELATED CONTROVERSY, BUT INSTEAD SEEKS TO CLARIFY THE FACTUAL ALLEGATIONS AND LEGAL THEORIES SO THAT THE ISSUES MAY BE RESOLVED ON THEIR MERITS."

Further that "PLAINTIFF ACTED PROMPTLY AFTER REVIEWING THE FILE TO PREPARE THE PROPOSED FIRST AMENDED COMPLAINT. THE REQUESTED AMENDMENT IS NOT MADE FOR PURPOSES OF DELAY, BUT TO PERMIT THE COURT TO DECIDE THE CONTROVERSY BASED UPON A COMPLETE PRESENTATION OF THE FACTS AND APPLICABLE LEGAL THEORIES."

Additionally, the motion states "THE PROPOSED FIRST AMENDED COMPLAINT CLARIFIES THE FACTUAL ALLEGATIONS AND ASSERTS ADDITIONAL LEGAL THEORIES RELATING TO THE PROPERTY DISPUTE, INCLUDING ALLEGATIONS CONCERNING THE DETACHED GARAGE, THE PURCHASE TRANSACTION, AND THE CONDUCT OF THE PARTIES INVOLVED."

The declaration in support states:

"4. THE PROPOSED FIRST AMENDED COMPLAINT ADDS AND CLARIFIES ALLEGATIONS CONCERNING, AMONG OTHER THINGS:

A.FRAUD AND MISREPRESENTATION;

B.FAILURE DISCLOSE MATERIAL FACTS

C.PROPERTY BOUNDARY AND OWNERSHIP ISSUES CONCERNING THE DETACHED GARAGE;

D.EASEMENTS AND PROPERTY USE RIGHTS;

E.NEGLIGENCE AND BREACH OF DUTY BY THE REAL ESTATE PROFESSIONALS INVOLVED IN THE TRANSACTION."

Further, that "6.THE REQUEST FOR LEAVE TO AMEND WAS NOT MADE EARLIER BECAUSE I WAS REPRESENTED BY COUNSEL FOR MUCH OF THIS CASE. MY FIRST ATTORNEY WAS RELIEVED FROM THIS CASE, I RETAINED BRIAN FOLLAND, WHO REPRESENTED ME FOR APPROXIMATELY SIX MONTHS BEFORE HE WAS ALSO RELIEVED FROM THE CASE."

Additionally, that "AFTER BOTH ATTORNEYS WERE NO LONGER REPRESENTING ME, I OBTAINED AND REVIEWED MY CASE FILE. DURING MY REVIEW, I DETERMINED THAT THE ORIGINAL COMPLAINT DID NOT FULLY INCLUDE ALL THE FACTUAL ALLEGATIONS AND LEGAL THEORIES THAT I BELIEVED WERE: SUPPORTED BY THE FACTS AND THE EVIDENCE IN MY POSSESSION. I ALSO IDENTIFIED INFORMATION I BELIEVE SHOULD BE INCLUDED TO

ACCURATELY PRESENTS MY CLAIMS.”

Further, Plaintiffs provide a summary of the proposed amendments contained in the first amended complaint.

The first amended complaint appears to have been lodged on May 28, 2026.

Plaintiffs have filed supplemental documents in support of the motion that confirms to the Court that the proposed amendments seek to clarify and correct factual allegations stated in prior versions of the complaint, but that the same property, garage and parties are at issue. Plaintiffs have provided citations to the proposed amended complaint that identify the proposed changes. Plaintiffs further indicate which causes of action have been removed and which causes of action have been added, including the reasons for each modification. Further, Plaintiffs indicate discovery of additional encumbrances on the property in November 2025 and July 2026 which, in part, appears to have necessitated the proposed amendments.

In opposition, Defendants maintain their argument argue that the declarations and motion provide no facts supporting why Plaintiffs were unaware of the facts not contained in the original complaint, which was verified by Plaintiffs.

Authority and Analysis

The Court may, in the furtherance of justice, and upon any terms as may be proper, allow a party to amend any pleading. (Code Civ. Proc. §§ 473, 576.) In general, California courts liberally exercise discretion to permit amendment of pleadings in light of a strong policy favoring resolution of all disputes between parties in the same action. (*Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 939; *Mesler v. Bragg Management Co.* (1985) 39 Cal.3d 290, 296 [“[T]here is a strong policy in favor of liberal allowance of amendments.”].) Pursuant to this policy, requests for leave to amend generally will be granted unless the party seeking to amend has been dilatory in bringing the proposed amendment before the Court, and the delay in seeking leave to amend will cause prejudice to the opposing party if leave to amend is granted. (*Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490; *Higgins v. Del Faro* (1981) 123 Cal.App.3d 558, 564-565.) The decision on a motion for leave is directed to the sound discretion of the trial court.

However, the Court finds a lack of compliance with California Rule of Court, Rule 3.1324. It is within the court's discretion to require compliance with Rule 3.1324 before granting leave to amend. (*Hataishi v. First American Home Buyers Protection Corp.* (2014) 223 Cal.App.4th 1454, 1469.)

Rule 3.1324 regulates the content of the motion and supporting declaration as follows:

“(a) Contents of motion

A motion to amend a pleading before trial must:

- (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

(b) Supporting declaration

A separate declaration must accompany the motion and must specify:

- (1) The effect of the amendment;
- (2) Why the amendment is necessary and proper;
- (3) When the facts giving rise to the amended allegations were discovered; and
- (4) The reasons why the request for amendment was not made earlier."

Here, subsection (a) is satisfied via the supplemental declaration provided which identifies the changes by page, paragraph and line number.

As to (b), the Court finds sufficient compliance with the requirements. The Court notes some delay between the discovery and inquiry into the facts and legal theories proposed and the filing of this motion initially. However, the Court finds a sufficient showing as to why the amendments were not made earlier including the replacement of counsel and Plaintiffs' further review of the operative complaint and various documents associated with the property.

The Court should not deny the motion unless the opposing party can show prejudice. (*Kittredge Sports Company v. Superior Court* (1989) 213 Cal. App. 3d 1045, 1048.)

Prejudice exists where amendment would: (1) cause a delay of trial; (2) increase preparation costs; (3) change the focus of the complaint; or (4) increase discovery burdens. (*Magpali, supra*, 48 Cal.App.4th 471, 486-488.) Additional discovery costs may support a claim for prejudice. (*Miles v. City of Los Angeles* (2020) 56 Cal.App.5th 728, 739 ["Prejudice exists where the proposed amendment would require delaying the trial, resulting in added costs of preparation and increased discovery burdens."].) Additionally, whether facts or legal theories are being changed and whether the opposing party will suffer prejudice "represent[] a different side of the same coin: If new facts are being alleged, prejudice may easily result because of the inability of the other party to investigate the validity of the factual allegations while engaged in trial or to call rebuttal witnesses. If the same set of facts supports merely a different theory—for example, an easement as opposed to a fee—no prejudice can result." (*City of Stanton v. Cox* (1989) 207 Cal.App.3d 1557, 1563.)

Here, no delay of the trial will occur. Defendants have not demonstrated increased preparation costs or significant discovery burdens. The Court does not find the focus of the proposed amended complaint will result in prejudice where the same property, garage and related issues are presented under different legal theories.

Therefore, the Court grants the motion and will deem the proposed amended complaint lodged May 28, 2026 deemed filed as of this hearing.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.